

answer under the circumstances, having reference to the subject matter of the answer, to the Defendant's former answer, and to the stage of the cause in which the application is made.

There is no such Order in England, but it is now necessary here, since the first answer may under the present practice be short, and not in the nature of a discovery.

The ostensible object of a decree in Equity is to give that relief to all the parties, Defendants as well as Plaintiffs, which the facts warrant, and in furtherance of that view, is the following Order :

1850.
XXVIII.
Decree may be so framed as to give the proper relief to the defendant as well as the plaintiff.

Where, in order to complete justice, relief ought to be given to the Defendant as well as the Plaintiff, or to the Defendant alone, it shall be competent to the Court, if it see fit, so to frame the decree as to attain such object, whenever the Defendant's right to relief grows out of the same transactions as form the subject matter of the Bill ; and the facts necessary to ground such relief may be stated by the Defendant in his answer as part of his case. Provided, that nothing herein shall be construed to authorise a defendant to state in his answer any distinct and independent matters, as the foundation for relief, not connected with, and growing out of, the case made by the bill ; and it shall in all cases be discretionary with the Court whether to grant such relief upon the answer, or to direct a separate suit to be instituted.

Application for time to answer is to the Master.

The application for further time to answer must be made to the Master, by taking out a warrant returnable on the fourth day from its date, that is, allowing two clear days between its date and the return ; and it must be returnable before the ordinary time for answering has expired ; otherwise the Master cannot entertain the application, having no jurisdiction, but a special motion must be made to the Court.

The practice before the Master in these applications is under the following Orders of 1846, which are not repealed except as to the parts italicised in brackets :—

1846.
181.
Application to Master for time to answer.

It is ordered—That the Master in ordinary of this Court shall hear and determine all applications for time [*to plead*] answer or demur, [*and for leave to amend Bills, and for leave to withdraw replication and amend Bills*], and for enlarging publication, and either party shall be at liberty to appeal by motion to the Vice Chancellor from the Order made by the Master upon such application.